

1. Charges in the Indictment

(a) The defendant SCHMITZ is indicted under Count I (Crimes against Peace), Count II (Plunder and Spoliation - constituting War Crimes), Count III (Slave Labor - constituting War Crimes and Crimes against Humanity), and Count V (Conspiracy to Commit Crimes against Peace).

(b) A number of document books were submitted and witnesses called in support of SCHMITZ' defense. The defendant SCHMITZ did not take the stand on his own behalf.

2. General Nature of the Evidence Supporting These Charges.

(a) SCHMITZ was a leading member of Farben's Vorstand by 1933 and from 1935 to 1945 he was Chairman of the Vorstand. As Chairman of the Vorstand, he was the head of the governing body of Farben. As Chairman of the Vorstand, SCHMITZ was "first among equals" in the Vorstand; had general supervision of the activities of Farben; was responsible for the general representation and direction of the interests of Farben; directed the meeting of the Central Committee; acted as Chairman of Vorstand meetings; regularly took part in the meetings of the TEA, KA and other committees and commissions of Farben; cooperated with the Chairman of the Aufsichtsrat and the Working Committee of the Aufsichtsrat in the appointment of members of the Aufsichtsrat and the Vorstand; and exercised the most outstanding single vote in control in all matters of finance in Farben.

(b) In PE 334, an affidavit by the defendant TER MEER, there is incorporated a statement (at p. 27) entitled, "Distribution of Work and Responsibilities of the members of the Vorstand of I.G. Farben and the Titulary Directors", which according to TER MEER was worked out by all the members of the Vorstand in Cansberg (except SCHMITZ) which included BUETTENISCH, VON KNIEREM, ILNER, HOERLEIN, GAJEWSKI, VON SCHNITZLER and TER MEER. In this statement the following comments are made concerning the functions of SCHMITZ as Chairman of the Vorstand: